

Ajay Gupta v. M.D., Paschimanchal Vidyut Vitaran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 22 December 2016 · Writ - C No. 60851 of 2016 · **Writ disposed; pending clause 6.5 bill-correction application to be decided by speaking order within four weeks.**

HEADNOTE

Ajay Gupta's application under clause 6.5 of the Electricity Supply Code, 2005 for correction of his electricity bill had been pending since September 2016. Disposing of the writ without examining the bill, the Division Bench directed the competent authority to decide that application by a speaking and reasoned order within four weeks.

FACTUAL SUMMARY

Ajay Gupta petitioned the Allahabad High Court against the Managing Director of Paschimanchal Vidyut Vitaran Nigam Ltd. and two others over correction of his electricity bill. His application under clause 6.5 of the Electricity Supply Code, 2005, had been pending before the competent authority since September 2016. Counsel for both sides were heard. The Court did not examine whether the bill was wrong and left that dispute on the pending application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending bill-correction application — time-bound disposal

HOLDING

Where a consumer's application under clause 6.5 of the Electricity Supply Code, 2005 for correction of the bill remains pending, the High Court will not decide the billing dispute in writ jurisdiction and will dispose of the petition by directing the competent authority to decide that application by a speaking and reasoned order within a fixed time. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE PETITIONER'S ELECTRICITY BILL

Merits of the pending clause 6.5 application left to the competent authority. ¶ 1